

Sole Source Justification (SSJ)
Simplified Procedures for Certain Commercial items for procurements exceeding the Simplified
Acquisition Threshold (SAT) pursuant to FAR Subpart 13.5, including Brand Name

Sole Source Justification

1. Agency and Contracting Activity.

The Department of Homeland Security (DHS), United States Security Service (USSS), Office of Procurement, proposes to enter into a contract on behalf of Uniformed Division (UD), on a basis other than full and open competition.

2. Nature and/or description of the action being approved.

USSS intends to procure on a sole source basis using Simplified Procedures for Certain Commercial Items without seeking competition for the acquisition of FedRAMP Record Management System (RMS) Software as a Service. This action is being taken in pursuant to FAR 13.501. The contract type for the proposed follow-on award to Mark43, Inc. is a firm fixed priced (FFP) contract.

USSS intends to establish a 5-year FFP contract to Mark43, Inc. for continuity of services for an exclusive technology focused cloud-based system to facilitate efficient exchange of information with the Washington, D.C. Metropolitan Police Department, and other law enforcement entities in the National Capitol Region (NCR).

Vendor Information:

Mark 43, Inc.
250 Hudson St., FL 3
New York, NY 10013
UEI No. YLDGC3H3GW43

3. Description of Supplies/Services.

This requirement is for a multi-tenant cloud based FedRAMP High Record Management System (RMS) Software as a Service that meets federal standards to include National Incident-Based Reports System (NIBRS) and Criminal Justice Information Services (CJIS). The RMS provides the capabilities for users to generate inquiries to internal and external data sources—such as state Department of Motor Vehicles and criminal history files, as well as the National Crime Information Center (NCIC). The RMS provides for the storage, retrieval, retention, manipulation, archiving, and viewing of information, records, documents, or files pertaining to law enforcement operations. RMS covers the entire life span of records development, from the initial generation to its completion. For the purposes of this document, RMS is limited to records directly related to law enforcement operations. Such records include incident and accident reports, arrests, citations, warrants, case management, field contacts, and other operations-oriented records.

4. Identification of the authority.

☒ 41 U.S.C. 1901, using SAP up to \$7.5M as authorized by FAR 13.500(a) and implemented by FAR 13.501(a).

5. Demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

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Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements:

Mark43, Inc. is the only source capable of providing the software services at the level of quality required to satisfy the agency's requirements.

Mark43 RMS is the only cloud-based records system used by partner law enforcement agencies such as Metropolitan Police Department, Park Police, and Capitol Police and is currently in use by the USSS Uniformed Division (UD). Additionally, Mark43 RMS has been identified as the only vendor capable of providing USSS UD with consolidated analytical threat reports generated from its proprietary database and have the ability to interface with the local police department. This information is needed to make immediate threat level determinations and actions associated with adverse information against UD personnel. Other sources researched lacked the capacity and access to key proprietary or public databases such as the real-time arrest and incarceration records database maintained by the local police department.

While other sources were identified capable of providing equivalent services and is FedRAMP High certified, their system lacks the interoperability needed for a constant back and forth communication flow between agencies using the Mark43 RMS platform.

Information collected by USSS needs to be shared among other federal agencies such as the Federal Bureau of Investigation (FBI) and the Department of Homeland Security (DHS), United States Park Police (USPP), United States Capital Police (USCP), Metropolitan Police Department (MPD). This information needs to be accurate with immediate availability, back-up system and technical support 24/7 to help eliminate risks associated with national security.

6. Description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by FAR Subpart 5.2 and, if not, which exception under FAR 5.202 applies.

As required by the Small Business Act (15 U.S.C. 637(e) and the Office of Federal Procurement Policy Act (41 U.S.C. 1708), a notice of intent to sole source to Mark43, Inc. will be posted on SAM.gov in accordance with FAR 5.2. The estimated date of publication is 17 February 2025.

7. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

FAR 13.106-3(a)(2)(i) states that for the *basis for award*, "The contracting officer may base the statement on *"comparison of the proposed price with prices found reasonable on previous purchases."*

8. Description of market research.

Market research was conducted via internet searches, consulting subject matter experts from various agencies with similar requirements and posting a Request for Information (RFI) to identify any new vendors that have technology equivalent to or exceeds Mark43 legacy systems used by most Police agencies in the National Capital Region.

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A review was also done of existing Department of Homeland Security strategic sourcing vehicles (SSVs) to see if any systems are available. Vendor engagement meetings revealed that existing platforms could be modified to match the requirement but could not be linked with legacy systems, such as Mark43 used in the NCR to exchange information.

Additionally, Request for Information (RFI) 70US0924R700942672 was drafted and posted on SAM.gov on 8 March 2024 inviting vendors to provide an overview of their products and services to meet the agency's needs. While there were several vendors that expressed interest and provided a capabilities statement, most lacked Authority to Operate (ATO) within DHS network or other systems and/or Federal Risk and Authorization Management Program (FedRAMP) Approval, providing a standardized approach to security for cloud-based products and services. With Mark43 being a legacy system in the National Capital Region currently in use by the Metropolitan Police Department DC, Park Police, and Capital Police, vendors who responded lacked the interoperability to communicate with existing Mark43 users, making them unable to meet the agency's needs.

9. Any other facts supporting the justification.

N/A

10. A listing of the sources, if any that expressed, in writing, an interest in the acquisition.

In an effort to update Market Research, RFI 70US0924R70094272 was posted on SAM.gov on 8 March 2024 and closed on 7 April 2024 to identify industry capabilities. After extensive review, only some of the vendors were currently FedRAMP high certified. Per the RFI "The offeror shall provide all resources and support to stand-up the solution in a FedRAMP approved High Cloud production, development, and training environment."

Additionally, the RFI stated "The proposed RMS must be a complete multi-tenant cloud based FedRAMP High service ready for **immediate use**" and that the system shall allow USSS to "shared among other federal agencies such as the Federal Bureau of Investigation (FBI) and the Department of Homeland Security (DHS), United States Park Police (USPP), United States Capital Police (USCP), Metropolitan Police Department (MPD)." An email was sent to each RFI respondent to verify current interface capabilities. The Metropolitan Police Department, Park Police and Capitol Police currently use Mark43 RMS and there are no other systems capable of communicating with Mark43 RMS at this time.

11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for supplies or services required.

The USSS UD will continue to conduct market research to identify any emerging software that will satisfy the agency's needs in an effort to increase future competition.

12. USSS intends to post the requirement pursuant to FAR 13.501(a)(1)(iii) and 6.305(a).

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